B Sambi Reddy vs Central Bureau Of Investigation ... on 26 September, 2024

Author: Dinesh Kumar Sharma

Bench: Dinesh Kumar Sharma

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
\+ CRL.A. 781/2024, CRL.M.A. 29284/2024
B SAMBI REDDY
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CENTRAL BUREAU OF INVESTIGATION THROUGH
DIRECTOR .
Through: Mr. Rajesh Kumar, SP
Ms. Mishika Pandita,
Changez Ali Khan., M
Advs.

CORAM:
HON'BLE MR. JUSTICE DINESH KUMAR SHARMA
OR

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CRL.M.(BAIL) 1416/2024

1. The present application has been filed under Section 430 BNSS seeking suspension of sentence in case FIR No. RC.217 2015A 0001/ACU- V/AC-II/CBI/ND under Section 120B r/w sec 420/468/471 IPC & 13(2) R/w 13(1)(d) PC Act IPC registered at PS BS & FC/Delhi.

2. The appellant was convicted vide order/judgment dated 16.07.2024 in RC.217 2015A 0001/ACU-V/AC-II/CBI/ND. The Ld. Trial Court vide order on sentence dated 24.07.2024 awarded Rigorous Imprisonment for 04 years and fine of Rs. 25,000/- and in default of payment of fine This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 28/09/2024 at 02:08:34 further Simple Imprisonment of 01 month, for the offence punishable under Section 7 of the PC Act. The appellant was also awarded Rigorous Imprisonment for 05 years and fine of Rs. 50,000/- and in default of payment of fine further Simple Imprisonment of 02 months, for the offence punishable under Section 13(2) of the PC Act. The sentences were directed to run concurrently.

3. Sh. Mohit Mathur, learned senior counsel and Sh. Aman Sareen, learned counsel for the petitioner submits that the petitioner is 65 years of age and has remained on bail during the trial. Learned senior counsel submits that after the conviction, the appellant is in custody for more than 04 months. Learned senior counsel further submits that the appellant has a good chance to succeed in the appeal. Learned senior counsel submits that the case of the prosecution in brief is that the appellant who was a bank officer and was attached to the CBI for assisting them in investigation of bank fraud cases allegedly demanded bribe from Mr. K. V. Singh i.e., the complainant who was DGM, Dena Bank to help him in RCBD1/2013/E.0002.

4. Learned senior counsel submits that the story as propounded by CBI itself is not plausible as the charge-sheet in that case had been filed around 15 days prior to the alleged trap. Learned senior counsel submits that it would not appeal to the reason that if the charge-sheet had already been filed the complainant who was a senior officer as DGM in Dena Bank would agree to give a bribe to a junior bank officer who is simply attached to CBI for assisting the CBI in investigation. Learned senior counsel also submitted that Mr. K. V. Singh was not arrayed as an accused in the charge-sheet filed in that case.

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5. Learned senior counsel further submits that as per the CBI the bribe money was put into an envelope and on the envelope Phenolphthalein powder was duly applied. However, learned senior counsel submits that as per the case of the prosecution the appellant accepted the envelope. It has further been submitted that after the trap when the hands of the appellant were dipped into water, the color of the water did not change. Learned counsel has also submitted that the Ld. Trial Court has even acquitted the investigation officer who was also an accused in the present case. Learned senior counsel submits that therefore the sentence may be suspended as the hearing of the appeal may take long time.

6. Sh. Rajesh Kumar, learned SPP for CBI has vehemently opposed the application for suspension of sentence. Learned counsel has relied upon the judgments of Jai Bhagwan v. State (NCT of Delhi). 2007 SCC Online Del 1502 and Om Prakash Sahni vs. Jai Shankar Chaudhary & Ors. (2023)6 SCC 123.

7. Learned counsel submits that the Courts have taken a consistent view that the corruption cases have to be dealt with in a different manner. Learned counsel submits that the Court noted the fact that normally in the corruption cases the accused persons are admitted to bail during the trial. It has further been submitted that the suspension of sentence under Section 389 is not a matter of right. It has been submitted that it is a discretionary exercise which has to be exercised judiciously.

8. Sh. Rajesh Kumar, learned SPP for CBI further submitted that the Ld. Trial Court in the impugned judgment had categorically held that there was a demand and recovery from the accused.

9. Learned counsel submits that the bail in such cases may not be granted This is a digitally signed order.

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10. There is no doubt to the proposition that the suspension of sentence is not a matter of right. It is a discretion which has to be exercised judiciously. The Constitutional Courts have time and again held that in the fixed term of sentences if the hearing of the appeal may take a long time, the Court may exercise the discretion of suspension of sentence unless there are exceptional circumstances.

11. In the present case, the issues which have been raised by the appellant require consideration. This would mean the appreciation of evidence. At this stage, making any comment about the same may prejudice either of the parties during appeal. However, suffice it to say that there are valid points raised on behalf of the appellant which requires consideration. The hearing of appeal may take long time and the appellant had remained on bail during the course of trial and as the appellant is 65 years of age there is no other criminal antecedent being brought to the notice of the Court.

12. In view of the facts and circumstances, the sentence is suspended and the appellant is admitted to bail on furnishing a personal bond of Rs. 2,00,000/- (Rupees Two Lakhs Only) with one surety of the like amount subject to the satisfaction of Ld. Trial Court and subject to the following conditions:

> a. the petitioner shall regularly appear before the Court as and when the appeal is taken up for hearing;
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> The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 28/09/2024 at 02:08:34 b. the petitioner shall remain available on the address, to be provided to the IO and shall not leave the country without the permission of the learned Trial Court;
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> c. the Petitioner shall not directly or indirectly make any inducement, threat or intimidate any person acquainted with the facts of the case;
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> d. the Petitioner shall provide his/her mobile number(s) to the Investigating Officer and keep it operational at all times; e. In case of change of residential address and/or mobile number, the Petitioner shall intimate the same to the Court concerned by way of an affidavit.

13. Copy of the order be sent to the concerned Jail Superintendent for information and compliance.

14. In view of the above, the present application stands disposed of.

15. List on 24.01.2025.

DINESH KUMAR SHARMA, J SEPTEMBER 26, 2024/AR/DG..

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